

Smt. Shailesh Mittal v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 19 March 2013 · Writ-C No. 15360 of 2013 · **Writ disposed; independent meter test at consumer's cost.**

HEADNOTE

On a challenge to notices requiring a consumer to attend departmental checking of her meter, the High Court disposed of the writ by directing the licensee to have the meter checked by an independent agency at the consumer's cost, after a provisional assessment and deposit of the actual testing charges, and held that the consumer need not remain present as directed in the impugned letter.

FACTUAL SUMMARY

The petitioner challenged notices requiring her presence when a team of licensee officers would check her meter on 11–12 March 2013. She said she had opted under the U.P. Electricity Supply Code, 2005 for examination by an independent agency, whereas the committee comprised officers serving under the licensee. The licensee replied that she had not named any laboratory, so the meter would be tested in the departmental laboratory. In hearing, her counsel said she would not object to a respondent team checking the meter if given intimation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::independent-agency-meter-check

independent agency meter testing

HOLDING

Where the consumer had opted under the Supply Code for the meter to be examined by an independent agency, the Court directed the licensee to get the meter checked by any independent agency at the consumer's cost: the department may make a provisional assessment of expenses, and after the agency's actual charge is known the consumer shall be intimated and must deposit that amount within fifteen days. In view of that direction, the consumer need not remain present as required by the letter dated 21.2.2013. ¶ 1

FLAG order invokes UP Electricity Supply Code, 2005 generally; no clause number